IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

Writ Petition (Civil) No. 231 of 1977

Maneka Gandhi ... Petitioner

versus

Union of India ... Respondent

JUDGMENT

Hon'ble Justice P.N. Bhagwati

1. The petitioner is an Indian citizen whose passport has been impounded by the Government of India under Section 10(3)(c) of the Passport Act, 1967. The principal question for consideration in this writ petition under Article 32 of the Constitution of India is the constitutional validity of the impoundment order dated 4th July, 1977.

2. The petitioner contends that the impoundment order violates her fundamental rights guaranteed under Articles 14, 19 and 21 of the Constitution. She relies on A.K. Gopalan v. State of Madras (1950) SCR 88 and Satwant Singh Sawhney v. D. Ramarathnam AIR 1967 SC 1836.

3. It is now well-settled that the procedure established by law under Article 21 must be just, fair and reasonable. The principles in Kharak Singh v. State of Uttar Pradesh AIR 1963 SC 1295 also apply. The decision in Kesavananda Bharati v. State of Kerala (1973) 4 SCC 225 establishes the basic structure doctrine.

4. Articles 14, 19 and 21 are not mutually exclusive — they are inter-related. A law prescribing a procedure for depriving a person of personal liberty must satisfy the requirements of Article 14 (non-arbitrariness) and Article 19 (reasonable restrictions).

5. We hold that the right to travel abroad is included in 'personal liberty' under Article 21. The procedure under Section 10(3)(c) of the Passport Act, 1967 must therefore be just, fair and reasonable.

6. We accordingly quash the order dated 4th July, 1977 impounding the petitioner's passport. The writ petition is allowed. Section 302 IPC and Section 41 CrPC are not relevant here.